1.

CASE #	CASE NAME	HEARING NAME
CVME2503440	ELSMORE VS MOLDO	MOTION FOR RECONSIDERATION OF ORDER DENYING MOTION TO VACATE/SET ASIDE DEFAULT JUDGMENT

Tentative Ruling: Hearing Required.

2.

CASE #	CASE NAME	HEARING NAME
CVME2505414	BARRETT DAFFIN FRAPPIER TREDER & WEISS, LLP VS MCFARLAND	MOTION FOR STATUTORY DISCHARGE; PAYMENT OF ATTORNEYS FEES AND DEPOSIT OF FUNDS IN COURT

Tentative Ruling: Motion is granted. Attorney's fees awarded to plaintiff in the amount of $4,092.00 and costs of $983.43. Balance of $132,852.29 to be deposited into the Court Trust Account. Plaintiff is discharged.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510668	28441 RANCHO CALIFORNIA, LLC VS HOLLYWOOD SOLES, LLC	DEMURRER AND MOTION TO STRIKE ON 2ND AMENDED CROSS-COMPLAINT BY 28441 RANCHO CALIFORNIA, LLC

Tentative Ruling: Demurrer for uncertainty is overruled. General Demurrer sustained on XC Causes of Action 1-5 Sustained without leave to amend. Motion to Strike is Moot.

This action arises out of the alleged breach of a lease between the parties (the "Lease") for the commercial premises located at 28441 Rancho California Road, Suite X, Temecula, California (the "Property"). On September 9, 2025, Plaintiff 28441 Rancho California, LLC ("Plaintiff") filed a Complaint against Defendants Julian Moore ("Moore") and Hollywood Soles, LLC ("Defendants") for breach of lease and breach of lease guaranty. On November 17, 2025, Defendants filed an Answer to the Complaint and a Cross-Complaint against Plaintiff for: (1) breach of contract; (2) breach of the implied covenant of quiet enjoyment; (3) constructive eviction; (4) intentional interference with prospective economic advantage/business relations; and (5) negligent interference with prospective economic advantage/business relations. On January 20, 2026, Defendants filed a First Amended Cross-Complaint ("FACC") against Plaintiff asserting the same causes of action. On April 21, 2026, the Court sustained Plaintiff's demurrer to each cause of action asserted in the FACC with leave to amend. On May 11, 2026, Defendants filed a Second Amended Cross-Complaint ("SACC") asserting the same causes of action.

In the SACC, Defendants allege that on February 12, 2024, Hollywood Soles leased the Property from original lessor, The Elwell Building, Inc. ("Elwell") for the term of one-year, from March 1, 2024, to February 28, 2025. (SACC at ¶¶ 3-4, 11-12, Ex. C.) The Lease was for a 3,544 square foot suite inside a 22,394 square foot mixed use industrial/office building. (SACC at ¶ 12, Ex. D.) Hollywood Soles took possession of the Property, paid rent, and fulfilled its obligations throughout the initial lease term. (SACC at ¶ 13.) On September 19, 2024, Plaintiff acquired the Property from Elwell, assuming all of Elwell's rights, interests, and obligations. (SACC at ¶ 14.) When Plaintiff acquired the Property, it retained Westmar as its property manager, and Westmar communicated with Hollywood Soles concerning the Property and lease. (SACC at ¶¶ 26-30.) On February 12, 2025, Plaintiff and Hollywood Soles executed a First Amendment to the Lease ("First Amendment") extending the lease term through February 28, 2026. (SACC at ¶ 15, Ex. E.) Moore executed a Guaranty of the Lease/First Amendment. (SACC at ¶ 15, Ex. F.) Paragraph 38 of the Lease states that Hollywood Soles "shall have quiet possession and quiet enjoyment of the Premises during the term hereof." (SACC at ¶ 17.)

Defendants further allege that Hollywood Soles operated an online and wholesale-based business from the Property, which functioned as a commercial warehouse, not a retail location open to the public. (SACC at ¶ 21, 23.) During business hours, Hollywood Soles kept the front door of the Property open for deliveries and pickups only, and its operations required controlled access for employee safety and protection of valuable inventory. (SACC at ¶¶ 22, 24-25.) During the term of the First Amendment, Defendants found multiple commercial real estate listings advertising the Property as immediately "available" and "for Lease," and on April 3, 2025, Moore notified property management of this. (SACC at ¶¶ 31-35.) Despite Defendants notifying Plaintiff of the false and misleading advertisements, Plaintiff did not retract the ads or instruct the listing brokers to stop directing prospective tenants to the Property. (SACC at 37-38.) Starting April 3, 2025, multiple prospective tenants and brokers came to the Property, in ten separate incidents, to tour and inspect the premises during normal business hours, thereby disrupting Hollywood Soles' business, causing employees to feel anxious and unsafe due to unfamiliar individuals entering and asking questions about the Property, and causing potential customers to leave due to confusion. (SACC at ¶¶ 41-45, 47.) Moore also received text messages and phone calls from unknown individuals stating they planned to come to the Property. (SACC at ¶ 46.) Hollywood Soles' business relationships with existing wholesale customers, Sneaker Lounge and Kick Stock, were disrupted by unknown individuals entering the Property and asking whether the space was available for lease while the customers were present, causing them to reduce the frequency and volume of their visits and purchases. (SACC at ¶¶ 48-55.) In addition to the disruptions, during the term of the lease, mice roamed the Property, startling employees and customers and damaging some of Hollywood Sole's merchandise. (SACC at ¶ 56.) Plaintiff scheduled a pest control service for August 22, 2024, but afterward mice and rats continued to show up at the Property. (SACC at ¶¶ 57.) Plaintiff scheduled another pest service for October 23, 2024. (SACC at ¶ 57.) On June 3, 2025, management advised Moore that Plaintiff had instructed the listing brokers to keep the Property on the market in an effort to lease the space at the conclusion of the Lease. (SACC at ¶¶ 39-40.) At a meeting on June 5, 2025, WestMar acknowledged she couldn't find written confirmation that Hollywood Soles agreed to the marketing of the Property or prospective tenant access, and stated she should have followed up more on Moore's complaints. (SACC at ¶ 59.) On June 12, 2025, Moore sent Plaintiff a Notice of Breach of Lease Termination Settlement Proposal, effectively terminating the Lease because of ongoing disruptions, and vacated the Property. (SACC at ¶ 61.)

Plaintiff demurs to the SACC on the grounds that it fails to state a cause of action and is uncertain. It argues that the breach of lease cause of action fails because the Lease allows advertising, so Plaintiff's failure to stop advertising after Defendants complained did not breach the agreement; while ¶ 38 provides that Defendants are entitled to the quiet enjoyment of the Property, 10 unauthorized entries by prospective tenants is not a breach of quiet enjoyment; and Defendants acknowledge that Plaintiff scheduled pest control services in response to their complaints. It also argues that the breach of the covenant of quiet enjoyment cause of action fails because minor inconveniences are not actionable; a landlord has no duty to control third-party conduct; and there is no allegation that Plaintiff entered the Property or authorized visits by prospective tenants. It contends the constructive eviction cause of action fails because the Property was not rendered unfit for the purposes of which it was leased, and there is no allegation of interference by the landlord. Plaintiff further argues that the interference causes of action fail because the conduct that Defendants allege disrupted their relationships with Sneaker Lounge and Kick Stock was not wrongful. Finally, Plaintiff argues that Defendants should not be given leave to amend because they have been unable to state valid causes of action despite multiple attempts at amendment.

Plaintiff also moves to strike Defendants' claim for punitive damages.

In opposition, Defendants argue that the SACC is not uncertain. They also argue that their claims for breach of contract and quiet enjoyment are sufficient because they properly allege Plaintiff breached the provision in the Lease providing Defendants with the right to quiet enjoyment by failing to remove listings stating the Property was available for immediate rent after Defendants complained, despite the listings resulting in 10 unauthorized entries, risks to employee safety, and disruption of Defendants' business. Finally, they argue that the constructive eviction cause of action is sufficient because there were not just minor inconveniences, and whether interference was substantial is a question of fact; they sufficiently allege interference with specific economic relationships; and they should be granted leave to amend if any claim is not sufficiently stated.

They also argue their punitive damages claim is sufficient.

In reply, Plaintiff argues that the demurrer should be sustained without leave to amend because Defendants' added allegations rely on the same theory this court has already rejected; the allegations are insufficient to support any of the asserted causes of action; and amendment would be futile.

Meet and Confer - Defendants met their statutory obligation pursuant to C.C.P. §§ 430.41(a) and 435.5(a) to meet and confer before filing this demurrer and motion to strike. (See, Decl. of Marco A. Torres at ¶¶ 4-6; Decl. of Trevor Brendlin at ¶¶ 4-6.)

Demurrer – A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (C.C.P. § 430.10(f).) Demurrers for uncertainty, however, are typically sustained only where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Uncertainty - While Plaintiff specially demurs to the SACC on the ground of uncertainty under C.C.P. § 430.10(f), it fails to explain how any of the claims are uncertain such that it cannot reasonably determine what issues must be admitted or denied, or what claims are directed against it. (*Khoury*, *supra*, 14 Cal.App.4th 612, 616.) Accordingly, the demurrer is overruled on grounds of uncertainty.

Breach of Lease (1st) and Breach of the Covenant of Quiet Enjoyment (2nd) Causes of Action - The elements for a breach of contract/lease claim are: (1) a contract; (2) plaintiff's performance or excuse for nonperformance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) "If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307; *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [Contract terms may be alleged in haec verba or generally according to legal intendment].)

Defendants' breach of lease cause of action is now based on Plaintiff's alleged breach of the lease term stating that Defendants "shall have quiet possession and quiet enjoyment of the Premises during the term hereof." (SACC at ¶ 17; Opposition, pp. 5:16-6:19.) Defendants acknowledge the Court's prior ruling that nothing in the Lease prohibited Plaintiff from advertising the Property for rent, but argue that Plaintiff breached their right to quiet enjoyment by continuing to advertise the Property for rent after Defendants complained that it was interfering with their business. (SACC at ¶¶ 34-38; Opposition, p.6:3-19.)

"In the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises. … The covenant of quiet enjoyment 'insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenant's right to use and enjoy the premises for the purposes contemplated by the tenancy." (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588 [internal citations omitted] [fn. Omitted].) Here, the Lease also provides a right to quiet enjoyment of the Property. However, "[m]inor inconveniences and annoyances are not actionable breaches of the implied covenant of quiet enjoyment. To be actionable, the landlord's act or omission must substantially interfere with a tenant's right to use and enjoy the premises for the purposes contemplated by the tenancy." (*Id.* at 589.)

In the present case, Defendants allege that Plaintiff's actions in listing the Property for Lease interfered with their quiet enjoyment of the Property by: prospective lessees and brokers seeing the ads and attempting to tour or access the Property; Moore receiving texts and phone calls from individuals wishing to visit the Property; bringing unwanted attention to the business; employees becoming anxious when unfamiliar individuals entered the Property and asked questions about it; prospective customers walking out due to confusion from others viewing the Property; and two customers reducing the frequency of their visits and the volume of their purchases. (SACC at ¶¶ 41-55.) Getting calls and texts and having individuals come into an open business and ask questions about the Property are minor inconveniences, not a substantial interference with Defendants' use of the Property as intended. (See, *Andrews*, *supra*, 125 Cal.App.4th at 589.) Thus, Defendants fail to allege sufficient facts to support their cause of action for breach of the covenant of quiet enjoyment. As the right to quiet enjoyment is also the sole basis for Defendants' breach of contract cause of action, Defendants also fail to allege sufficient facts to support that cause of action.

A party against whom a demurrer is sustained is entitled to leave to amend the defective complaint if she can "prov[e] a reasonable possibility that the defect can be cured by amendment." (*Silva v. Block* (1996) 49 Cal.App.4th 345, 349; see also, *T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 162, 226 Cal.Rptr.3d 336, 407 P.3d 18.) The onus is on the plaintiff to articulate the "specifi[c] ways" to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend "only if a potentially effective amendment [is] both apparent and consistent with the plaintiff's theory of the case." (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.) As Defendants have had three opportunities to attempt to sufficiently plead these causes of action and have been unable to do so, and it does not appear they can cure the defects, the demurrer is sustained without leave to amend.

Constructive Eviction (3rd Cause of Action)- The tort of wrongful, or constructive, eviction gives a tenant who was wrongfully evicted by his landlord before the expiration of the lease term a claim for tort damages, and punitive damages if appropriate. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 294.) "Any disturbance of the tenant's possession by the lessor or at his procurement … which has the effect of depriving the tenant of the beneficial enjoyment of the premises, amounts to a constructive eviction, provided the tenant vacates the premises within a reasonable time." (*Erlach v. Sierra Asset Servicing, supra*, 226 Cal.App.4th at 1300.)

Here, Defendants state that they terminated the Lease. (SACC at ¶ 61.) While Defendants claim the termination was not voluntary, but due to Plaintiff's advertising the Property for rent over Defendants' objections [SACC at ¶ 62], as discussed above, the alleged continued advertising is insufficient to show Plaintiff breached the Lease or the covenant of quiet enjoyment. Therefore, Defendants fail to allege sufficient facts to support their constructive eviction cause of action. Accordingly, the demurrer to this cause of action is sustained without leave to amend.

Interference with Business Relationships (4th and 5th Causes of Action) - Defendants assert claims for both intentional and negligent interference with prospective economic advantage. For intentional interference with prospective economic advantage, the elements are: (1) economic relationship existing between the plaintiff and third party; (2) probability of future economic benefit to the plaintiff; (3) defendant's knowledge of the relationship; (4) defendant's intentional acts designed to disrupt the relationship; (5) defendant engaged in an independently wrongful act in disrupting the relationship beyond just inducing disruption of economic advantage; (6) actual disruption of the relationship; and (7) economic harm to the plaintiff caused by the acts. (*Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1290.) "[A] plaintiff seeking to recover for alleged interference with prospective economic relations has the burden of pleading and proving that the defendant's interference was ***wrongful by some measure beyond the fact of the interference itself***." (*Della Penna v. Toyota Motor Sales, U.S.A*. (1995) 11 Cal.4th 376, 392-393 (emphasis added).) "An act is not independently wrongful merely because defendant acted with an improper motive." (*Korea Supply Co. v. Lockheed Martin Corp*. (2003) 29 Cal.4th 1134, 1158.) "[A]n act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard." (*Id*. at 1159.)

Here, as discussed above, Plaintiff's continued advertising of the Property for rent does not constitute a breach of the Lease or Defendants' right to quiet enjoyment, so Defendants fail to allege independently wrongful act by Plaintiff. Therefore, there are insufficient facts to support this claim, and the demurrer is sustained without leave to amend.

The elements of a negligent interference claim are: (1) an economic relationship between a plaintiff and third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the relationship, and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose the probable future economic benefit; (3) defendant was negligent; and (4) the negligence caused damage to the plaintiff. (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 786.) The tort only arises when the defendant owes a plaintiff a duty of care. (*Lange v. TIG Ins. Co.* (1998) 68 Cal.App.4th 1179, 1187.) Defendants fail to allege any duty that Plaintiff owed to Defendants. Accordingly, the demurrer to this cause of action is also sustained without leave to amend.

Motion to Strike:
The court may, upon a motion made pursuant to CCP §435:

Strike out any irrelevant, false, or improper matter inserted in any pleading.

Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(C.C.P. § 436.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court*

(1998) 62 Cal. App. 4th 981, 984, n. 2.) Here, given the ruling on the demurrer, the motion to strike is moot.

4.

CASE #	CASE NAME	HEARING NAME
CVME2604520	GAME CLOUD NETWORK, INC VS KIRK	PLAINTIFF'S MOTION TO DISMISS COMPLAINT

Tentative Ruling: Motion to Dismiss or Stay on forum non convenient grounds is denied. Plaintiff is ordered to complete service and file a Proof of Service with the Court within 30 days of this order. OSC for failure to comply with service order set on 10-22-26.

Plaintiff Game Cloud Network, Inc. ("Plaintiff") alleges that Defendant Daniel Kirk ("Defendant") exploited Plaintiff by advancing multiple short-term loans between 2020 and 2022 carrying cash and equity returns that exceeded California's usury limit of 10%. Plaintiff alleges that Defendant advanced a total of $75,000 and now claims more than $3 million in both cash and equity. Plaintiff further alleges that the effective rate of over 262% per annum renders the interest provisions void and unenforceable. The operative Complaint, filed 2/27/26, asserts a single claim for declaratory relief. It seeks a determination that the agreement's interest provisions are usurious and void.

Defendant Kirk subsequently filed an action in Nevada on 3/18/26. That action names additional parties, i.e., Four Floors LLC, Aaron Baker, Seismic Capital Company, LLC, Eric White, and Alice Neuhauser. There, Defendant alleges claims for breach of contract, breach of the implied covenant of good faith and fair dealing, unjust enrichment, promissory estoppel, fraudulent inducement, and fraudulent misrepresentation arising from the same core conduct and transaction. On 8/5/26, the Nevada court stayed its action pending resolution of this first-filed California action.

Now, Defendant Kirk moves to dismiss the Complaint, arguing that Nevada is a suitable alternative and more convenient forum. It argues that Defendant Kirk is a Nevada resident, that Plaintiff solicited and accepted debt financing from Defendant and Four Floors LLC in Clark County, that the transaction and funds originated from Nevada, and the Nevada action includes all relevant participants and claims arising from the transaction. Defendant alternatively requests an OSC regarding Plaintiff's failure to serve Defendant within 60 days.

In opposition, Plaintiff argues the Nevada court has already stayed its own proceeding pending resolution of this California case, so it cannot be deemed a presently "suitable" forum. Plaintiff also argues that it operates its business in California, that the relevant third-party witnesses are in California, and that California has an interest in applying its usury laws. As to service, Plaintiff declares that it did not receive the endorsed copy of the complaint and summons until 4/21/26. Plaintiff thereafter attempted to locate Defendant, whose reported Nevada address allegedly is a commercial mailbox address and has been difficult to locate and serve.

In reply, Defendant argues that the Nevada stay does not make Nevada unsuitable. Defendant asserts that only Nevada can resolve the entire case because all participants